

Criminal Misc.No.5772-B/2013

Raja Nadeem Rafique

The State etc.

03.07.2013 Mr. Zafar Mahmood Chaudhary, Advocate for the petitioner and petitioner in person.
Ch. Muhammad Mustafa, DPG, Ameer Masud, ASP and Amanat Ali SI along with record for the State.
Pir S.A Rashid, Advocate for the complainant.

The petitioner seeks pre-arrest bail in case FIR No.1149/2012 dated 10.11.2012 under Sections 302/324/34 PPC Police Station South Cantt, District Lahore.

2. Briefly stated the prosecution version as set forth in the FIR is that the complainant is resident of Nishat Colony, Lahore Cantt and run a shop of chicken meat. On 10.11.2012 at about 04:30 p.m, he was present at his shop and four persons, while riding on two motorcycles came at the shop of his brother, namely, Amjad Ali, which is adjacent to his shop. The petitioner along with his co-accused persons entered into the shop of his brother by brandishing the weapons, started beating to him and on raising noise, the complainant came out of his shop and identified four persons namely Waqar, Muhammad Rafique, Malik Hadayat and the present petitioner. In the meanwhile, the complainant ahead for help of his brother but Malik Hadayat pointed out the pistol and warned the complainant that if he tried to rescue his brother, he would be killed. Later on, Raja Nadeem Rafique made a straight fire of his pistol, which hit on the head of his brother, Raja Waqar made fire of his pistol, which landed on the back side of his brother and thereafter Muhammad Rafique made a fire, which hit at the shoulder of his brother. The witnesses namely Arshad @ Moga and Muhammad Shahzad saw the occurrence. Malik Hadayat also made a fire shot upon the complainant but he luckily saved. Thereafter, the petitioner along with co-accused persons fled away from the place of occurrence on their motorcycles and then the complainant came out

of his shop and saw that the accused persons made indiscriminating firing upon Barkat Ali and Ashiq Ali, who ran away into their houses and the accused persons chased them. Mst. Nusrat Bibi wife of Muhammad Mussaddiq came out of the house and also sustained injury by the firing of the accused. The motive behind the occurrence was stated to be the previous enmity.

3. The learned counsel for the petitioner has contended that the petitioner has been involved in this case with male fide intention just to blackmail him and deprived the petitioner from pursuing the murder case of his brother namely Raja Amjad Rafique; that copies of passport, boarding cards, visa and report of FIA are available on the file to support the version of the petitioner in respect of alibi and according to report of FIA, the traveling history of the petitioner has been found in System; that the complainant party had murdered the real brother of the petitioner and this case was result of counterblast; that involvement of the petitioner with malice, mala fide and bad intention cannot be ruled out because at the time of occurrence the petitioner was out of country and that Raja Waqar the real brother of the present petitioner has also been involved in this case just to put pressure to withdraw the murder case of his brother so the petitioner is entitled to the concession of bail. In support of the contentions raised reliance is placed on **Ajmal Khan v. Liaqat Hayat and another** (PLD 1998 SC 97).

4. The learned DPG and the learned counsel for the complainant have vehemently opposed the petition. It is contended that the petitioner is nominated in the FIR with specific role; that recovery of the weapon of offence is yet to be effected from him so person of the petitioner is required for further investigation; that the petitioner is previous record holder and he took active part in the occurrence and that the photograph with regard to arrival of the petitioner on 16.11.2012 has not been obtained so the plea of alibi is not established. In support of the contentions raised reliance is placed on **Ghulam Ahmed Chishti v. The State and another** (2013 SCMR 385), **Muhammad Hafeez alias Babu v. The State** (2005 P.Cr.L.J 1335), **Muhamad Sardar & another v. State** (PLJ 1974 Cr.C (Lah) 521, **Ghulam Nabi v. The State** (1968 P.Cr.L.J) 186 and **Bahadur v. Muhammad Latif and others** (1987 SCMR 788).

5. I have heard the arguments of the learned counsel for the parties and have gone through the available record.

6. I have given my thoughtful consideration to the contentions of the learned counsel for the parties and also perused the record. It may be noticed that in the complaint of complainant recorded on 10-11-2012 on the basis of which FIR has been registered, it has been alleged that the petitioner was present at the spot and was armed with fire arm weapon. It is also alleged that he had fired at the head of deceased Amjad Ali and the petitioner had a motive to take revenge of the murder of his brother Raja Amjad Rafique. The petitioner/accused had raised plea of alibi by mentioning that at the time of occurrence, he was not in the country as at the time of occurrence, he was in Dubai, which fact was supported by the documentary evidence. The contentions on which considerable emphasis has been raised by the learned DPG and the learned counsel for the complainant are that a false plea of alibi has been raised. The police has verified the version of the accused to the extent that the departure picture of the petitioner is available but arrival of the petitioner in the Country could not be proved and Investigating Officer come to the conclusion that the petitioner is a clever person and Ex-Commando of Police Department, who knows all modes to save himself from the capital charge and the petitioner also failed to explain that why he went to Dubai on 09-11-2012 and returned back on 16-11-2012. This aspect need not to be gone into at this stage as the matter is still under investigation. In my view, this Court at the stage of consideration of pre-arrest bail is not to go into this aspect. In this respect, I have benefited from the law laid down by the August Supreme Court of Pakistan in case reported as **Mudassar Altaf and another v. The State** (2010 SCMR 1861). The plea of alibi came up for consideration before August Supreme Court of Pakistan in case of **Waqar-ul-Haq v. The State** (1985 SCMR 974) and it was held that as far the plea of alibi is considered, it cannot be judged at bail stage. It is also noticed by this court that the petitioner/accused after dismissal of his bail before arrest by the Trial Court remained fugitive from law for almost 95 days. It is a case of murder. While granting bail, the court has to make tentative assessment on the basis of material available on record. Deeper appreciation is not warranted at the time of grant of bail. At present,

there is ample evidence on record to connect the petitioner with the offence alleged against him, which even otherwise falls within the prohibitory clause of Section 497 Cr.P.C. The case law submitted by the learned counsel for the petitioner, it is observed that the facts of each case are always different from the other and bail applications are always decided on its own facts. As such the judgment cited by the learned counsel for the petitioner is distinguishable.

7. Resultantly this petition being without force is dismissed and ad-interim pre-arrest bail already granted to the petitioner vide order dated 14-05-2013 is recalled.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

***Tariq**